

ALITO, J., dissenting

constitutional and even though there are entirely legitimate arguments for allowing them.

I would not overrule *Apodaca*. Whatever one may think about the correctness of the decision, it has elicited enormous and entirely reasonable reliance. And before this Court decided to intervene, the decision appeared to have little practical importance going forward. Louisiana has now abolished non-unanimous verdicts, and Oregon seemed on the verge of doing the same until the Court intervened.¹

In Part II of this opinion, I will address the surprising argument, advanced by three Justices in the majority, that *Apodaca* was never a precedent at all, and in Part III, I will explain why *stare decisis* supports retention of that precedent. But before reaching those issues, I must say something about the rhetoric with which the majority has seen fit to begin its opinion.

I

Too much public discourse today is sullied by *ad hominem* rhetoric, that is, attempts to discredit an argument not by proving that it is unsound but by attacking the character or motives of the argument's proponents. The majority regrettably succumbs to this trend. At the start of its opinion, the majority asks this rhetorical question: "Why do Louisiana and Oregon allow nonunanimous convictions?" *Ante*, at 87. And the answer it suggests? Racism, white supremacy, the Ku Klux Klan. *Ante*, at 87–88. Non-unanimous verdicts, the Court implies, are of a piece with Jim Crow laws, the poll tax, and other devices once used to disfranchise African-Americans. *Ibid.*

If Louisiana and Oregon originally adopted their laws allowing non-unanimous verdicts for these reasons,² that is

¹ See Brief for State of Oregon as *Amicus Curiae* 1–2.

² Both States resist this suggestion. See Brief for Respondent 36–39; Brief for State of Oregon as *Amicus Curiae* 6–8.